

## Multiple Choice

1. **Answer:** C

*Options:* A) Because he neglects the importance of morality.; B) Because his account of law is based on an anachronistic model of a legal system.; C) Because he conceives of laws in a pragmatic rather than a conceptual manner.; D) Because he overlooks the role of law in economic relations.

*Note:* The characterization of Austin as a 'naive empiricist' stems from his focus on the practical application of laws and their effects in the real world, rather than engaging with abstract theoretical concepts or underlying principles.

2. **Answer:** C

*Options:* A) Right and duty.; B) Privilege and no-right.; C) Power and liability.; D) Immunity and disability.

*Note:* The correct answer is "power and liability" because, according to Hohfeld's scheme, powers are rights that allow individuals to create, modify, or extinguish legal relations, while liabilities are obligations imposed on individuals, making them inherently contradictory in the context of jural relations.

3. **Answer:** D

*Options:* A) Morality plays no role in the concept of law.; B) Moral arguments operate only in hard cases.; C) The law dictates what moral values should affect our ethical behaviour.; D) Moral values are both independent and objective.

*Note:* Dworkin argues that moral values exist independently of individual opinions and are universally applicable, asserting that they are objective standards that guide legal and ethical judgments.

4. **Answer:** C

*Options:* A) Standard-setting means putting forward binding legal standards; B) Standard-setting means merely proposing binding legal standards; C) Standard-setting means putting forward non-binding legal standards; D) Standard-setting means setting certain standards of conduct in human rights treaties

*Note:* Standard-setting in human rights diplomacy involves establishing non-binding legal standards that guide states and organizations in promoting and protecting human rights, thereby facilitating international cooperation and accountability.

5. **Answer:** B

*Options:* A) Piracy jure gentium is subject to flag State jurisdiction; B) Piracy jure gentium is subject to universal jurisdiction; C) Piracy jure gentium is subject to port State jurisdiction; D) Piracy jure gentium is subject to nationality-based jurisdiction

*Note:* Piracy jure gentium is considered a crime that affects the international community as a whole, thus allowing any state to exercise universal jurisdiction over it,

irrespective of where the crime occurred or the nationality of the perpetrators or victims.

## True / False

6. **Answer:** True

*Options:* A) True; B) False

*Note:* The statement is true because under international law, particularly the principle of flag state jurisdiction, a state has the authority to enforce its laws on vessels registered under its flag, thereby exercising jurisdiction over crimes committed on board those vessels.

7. **Answer:** False

*Options:* A) True; B) False

*Note:* The protective principle of jurisdiction focuses on the protection of a state's interests or citizens from harmful acts committed abroad, rather than the nationality of the offender.

8. **Answer:** True

*Options:* A) True; B) False

*Note:* Sir Henry Maine is recognized as the first jurist to systematically analyze and compare legal systems across different cultures and historical contexts, thereby establishing the foundation for the field of comparative law.

9. **Answer:** True

*Options:* A) True; B) False

*Note:* The principle 'pacta sunt servanda' is a fundamental tenet of international law that obligates parties to treaties to honor and fulfill their commitments in good faith, thereby ensuring legal certainty and stability in international relations.

10. **Answer:** False

*Options:* A) True; B) False

*Note:* A valid offer must not only express a willingness to enter a contract but also include clear terms and conditions that demonstrate the offeror's intent to be bound by those terms upon acceptance.

## Long Form Response

11. **Answer:** Bentham's felicific calculus, which aims to quantify happiness and guide legal decisions by calculating the consequences of actions, faces significant limitations in the realm of constitutional law. One major challenge is the inherent impossibility of predicting all potential outcomes of legal actions, as the complexities of human behavior and societal dynamics introduce countless variables. Legal decisions often unfold in unpredictable contexts, making it difficult to anticipate how a law will impact various stakeholders. Furthermore, the subjective nature of happiness complicates the

quantification process, as individuals may react differently to the same legal framework. Consequently, while Bentham's approach seeks to maximize overall utility, it is fundamentally constrained by the limitations of foresight and the variability of human experiences.

*Note:* correct because it identifies the primary limitation of Bentham's felicific calculus as the inability to accurately predict the numerous and complex consequences of legal actions within the unpredictable context of constitutional law.

12. **Answer:** Article 103 of the UN Charter asserts that in the event of a conflict between obligations under the Charter and obligations under any other international agreement, the former shall prevail. However, this provision is limited in its application when it comes to jus cogens norms, which are peremptory principles of international law that cannot be violated or derogated from, such as the prohibition of torture or genocide. Jus cogens norms hold a higher status in international law and therefore cannot be overridden by any treaty or agreement, including those established under the UN Charter. This limitation implies that states remain bound by fundamental human rights obligations, even in scenarios where their actions are justified under international agreements. As a result, the interplay between Article 103 and jus cogens norms reinforces the primacy of core human rights standards, shaping state obligations in the international legal framework.

*Note:* correct because it identifies that while Article 103 prioritizes UN Charter obligations over other agreements, jus cogens norms, which are fundamental principles of international law that cannot be overridden, take precedence over both the Charter and other international obligations, thereby highlighting the limitations of Article 103 in this context.